

24CHCV03434 24CHCV03434

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-09-04

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C09%2F04%2F2026

Source SHA-256: d274570a91955a0686c33c65f49d026fc1e5aeb83baa1e43b65068e0978bfd2b

Case Number: 24CHCV03434 Hearing Date: September 4, 2026 Dept: F49

Dept. F49

Date: 9/4/26

Case Name: Ralph Sasson v. Nicholas John Costeines,
Lauren Sasson, and Does 1-100

Case No. 24CHCV03434

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

SEPTEMBER 4, 2026

MOTION TO SET

ASIDE DEFAULT

Los Angeles Superior

Court Case No. 24CHCV03434

Motion filed: 4/8/26

MOVING PARTY: Defendant Nicholas John Costeines

RESPONDING PARTY: Plaintiff Ralph Sasson

NOTICE: No Proof of Service Filed

RELIEF REQUESTED: An order from this Court setting aside the default entered against Defendant Nicholas John Costeines on March 10, 2026.

TENTATIVE RULING: The motion is DENIED.

BACKGROUND

On May 28, 2024, Plaintiff Ralph Sasson ("Plaintiff") initiated this action seeking damages arising from Defendants Nicholas Costeines ("Costeines") and Lauren Sasson's ("Lauren") (collectively "Defendants") alleged use of confidential and privileged marital communications to exercise dominion over Plaintiff's property and interfere with Plaintiff's ability to receive a professional license. On June 11, 2025, Lauren was dismissed from the action at the request of Plaintiff.

Subsequently, on February 2, 2026, Plaintiff filed the operative Second Amended Complaint, alleging the following causes of action: (1) Attempted Civil Extortion; (2) Conversion; (3) Civil Stalking; (4) False Personation/Cyber Impersonation; (5) Invasion of Privacy – False Light; (6) Invasion of Privacy – Public Disclosure of Private Facts; (7) Defamation Per Se; (8) Trespass to Chattels; (9) Abuse of Process; (10) Malicious Prosecution; (11) Injunction for Statutory Harassment; and (12) Intentional Infliction of Emotional Distress.

On March 10, 2026, the Court entered default against Costeines.

On April 8, 2026, Costeines filed the instant motion to set aside the March 10, 2026 entry of default (the "Motion").

On August 28, 2026, Plaintiff filed an objection to the Motion.

ANALYSIS

Code

of Civil Procedure section 473 authorizes the Court to set aside default “taken against a party through the party’s mistake, inadvertence, surprise, or excusable neglect.” (§ 473, subd. (b).) This discretionary relief provision “is often applied liberally where the party in default moves promptly to seek relief, and the party opposing the motion will not suffer prejudice if relief is granted. [Citations.]” (Elston v. City of Turlock (1985) 38 Cal.3d 227, 233.) “[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default. [Citations.]” (Ibid.)

A.

Motion to Set Aside Default

Costeines seeks to set aside the March 10, 2026 default entered against him on the grounds that it resulted from a good faith procedural misunderstanding of the pleading requirements. (Mot., at p. 2.)

(1)

Preliminary

Concerns – Proof of Service

As a preliminary matter, the Court notes that the Motion does not include proof of service. A motion for relief from default requires notice to the adverse party. (Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 341.) In all proceedings requiring notice, the moving papers must be served and filed at least 16 courts days before the hearing. (Id., § 1005, subd. (b).) “Proof of service of the motion must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Court, rules 3.1300(c).)

As the hearing is set for September 4, 2026, proof of service was required to be filed with the Court no later than August 28, 2026. No proof of service is attached to the Motion, and the Court’s docket reflects that no proof of service of the Motion has been separately filed.

Plaintiff objects to the Motion on the grounds of lack of service and has not addressed the Motion on its merits. Plaintiff has accordingly not waived service. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697 [service waived where opposition on the merits is filed].)

The
absence of a timely filed proof of service is dispositive. The Motion is
accordingly DENIED.

CONCLUSION

Defendant Nicholas John Costeines' Motion to Set Aside is
DENIED.

Moving party to give notice.